

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X
THEODORE BARNES,

Plaintiff,

-against-

**CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, and POLICE OFFICER KARLA
VERAS,**

Defendants.

Index No.

SUMMONS

Plaintiff designates Bronx
County as the place of trial.
The basis of venue is the
action arose in Bronx
County.

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Verified Complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs attorney within 20 days after the service of the summons, exclusive of the day of service or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within Verified Complaint.

Dated: Maspeth, New York
July 17, 2022

Raymond Elvis Gazer
Raymond Elvis Gazer, Esq.
Law Offices of Raymond Elvis Gazer
64-04 Hull Avenue
Maspeth, New York 11378
(917)848-0527

TO: GEORGIA M. PESTANA, ESQ.
Corporation Counsel of City Of New York
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10038

POLICE OFFICER KARLA VERAS, Shield # 21537
40th Precinct
New York City Police Department
1 Police Plaza
New York, New York 10038

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**VERIFIED
COMPLAINT**

Plaintiff, by his attorney, RAYMOND ELVIS GAZER, ESQ., complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

1. That, at all times, the Plaintiff **THEODORE BARNES** was and is a resident of Bronx County, State of New York.

2. That, at all times, hereinafter mentioned, the defendant, **CITY OF NEW YORK**, hereinafter referred to as “**CITY**,” was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.

3. That, at all times, hereinafter mentioned the defendant, **NEW YORK CITY POLICE DEPARTMENT**, hereinafter referred to as “**NYPD**” was and is an agency of the defendant, **CITY**.

4. That, on and prior to July 13th, 2021 and at all times hereinafter mentioned the defendant, **POLICE OFFICER KARLA VERAS**, Shield # 21537, hereinafter referred “**VERAS**” was and is a police officer employed by the defendant **NYPD**, assigned to the 40th

Precinct, and at all times herein was acting in such capacity as the agent, servant and employee of the **CITY** and **NYPD**.

5. Upon information and belief, at all times hereinafter mentioned, and on July 13th, 2021, at approximately 6:30 p.m., the above-mentioned Police Officer was acting within the scope of her employment and under the direction of the **CITY** and **NYPD** as its agents, servants and/or employees.

6. That, on and prior to July 13th, 2021, **VERAS** was individually hired, screened, tested, interviewed, trained, retrained, investigated, monitored and supervised by the **CITY** and **NYPD**.

7. That, on and prior to July 13th, 2021, in the vicinity of 497 East 156th Street, Bronx, New York 10456, Apartment 5D, **VERAS**, individually and/or collectively, was acting pursuant to and under the rules and regulations of the New York City Patrol Guidelines.

8. That, on July 13th, 2021 at approximately 6:30 p.m., Plaintiff **THEODORE BARNES** was lawfully within his apartment at 497 East 156th Street, Bronx, New York 10456, Apartment 5D

9. That, at the time that he was arrested, **THEODORE BARNES** was breaking no laws or, otherwise, engaging in any unlawful behavior.

10. That, on July 13th, 2021, 497 East 156th Street, Bronx, New York 10456, Apartment 5D, at approximately 6:30 p.m., **VERAS**, police officers from **NYPD**, and its other employees, agents, and individuals acting pursuant to its direction, absent an arrest or search warrant, probable cause, reasonable cause, exigency, or any legal justification, broke into and entered Plaintiff **THEODORE BARNES**' apartment without his permission or consent, nor the permission or consent of anyone else with actual or apparent authority, for no reason whatsoever

and summarily stopped, searched, grabbed, assaulted, battered, and detained him in an aggressive and excessive manner, searched said apartment and damaged property, and placed Plaintiff under arrest.

11. Upon information and belief **VERAS** and **NYPD** knew or had reason to know that their actions lacked any legal justification in forcibly entering Plaintiff **THEODORE BARNES'** apartment, and searching, seizing, and arresting him.

12. Upon information and belief, Plaintiff **THEODORE BARNES** was subjected to a strip search while in the custody of defendants without any legal reason or justification.

13. That, Plaintiff **THEODORE BARNES** was arraigned after his arrest and thereafter falsely and maliciously prosecuted with committing various crimes based upon false and incomplete information provided to the District Attorney by **CITY, NYPD, and VERAS**.

14. Thereafter, Plaintiff **THEODORE BARNES** remained incarcerated for approximately two days without seeing a judge or magistrate and was deprived of adequate food and medical care.

15. That, on December 16th, 2021, the prosecution commenced against **THEODORE BARNES** was summarily dismissed and terminated in his favor without any explanation therefore.

16. That, during the pendency of the false and malicious prosecution, **THEODORE BARNES** was forced to defend against the false and spurious allegations and was required to make numerous court appearances.

17. Plaintiff **THEODORE BARNES** sustained physical and emotional pain and injuries as a result of this incident.

18. That within ninety days after the causes of actions accrued herein, and more than thirty days prior to the commencement of this action, the Plaintiff **THEODORE BARNES** caused the notice of claim, in writing, sworn on behalf of the claimant, the Plaintiff herein, containing the statement of the name and place of residence of the claimants by the street and number and their attorney, and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon the defendant **CITY**, their agents, servants and/or employees at the Law Department and/or Comptroller's Office.

19. This action was so commenced within one year and ninety days after said cause of action accrued herein, and for more than thirty days prior to the commencement of this action, defendant **CITY** neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although plaintiff herein has requested and demanded that the same be paid and adjusted.

20. That the defendants requested an oral examination pursuant to General Municipal Law Section 50-H and said request was complied with.

**AS AND FOR A FIRST CAUSE OF ACTION ON
BEHALF OF PLAINTIFF THEODORE BARNES**

21. Plaintiff **THEODORE BARNES** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 21 with the same force and effect as if fully set forth at length herein.

22. That, on or about July 13th, 2021, the Plaintiff **THEODORE BARNES** was without just cause, probable cause or provocation, and with reckless, negligent and callous disregard for the truth, and without investigation, touched, grabbed, handcuffed, seized and

arrested in an excessive manner and with excessive force by **CITY, NYPD, and VERAS**, their agents, servants and/or employees.

23. That, on or about July 13th, 2021, the Plaintiff **THEODORE BARNES**, while lawfully his apartment, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by **CITY, NYPD, and VERAS**, their agents, servants and/or employees, of having committed various criminal offenses.

24. That, on or about July 13th, 2021, and upon arresting the Plaintiff **THEODORE BARNES** and depriving him of his liberty, **CITY, NYPD, and VERAS**, their agents, servants and/or employees, took the Plaintiff **THEODORE BARNES** to a police station in the County of Bronx and entered him on the records as under arrest.

25. That, on or about July 13th, 2021, **CITY, NYPD, and VERAS**, their agents, servants and/or employees, further caused Plaintiff **THEODORE BARNES** to have his fingerprints and photographs to be taken without his consent and in accordance with police procedures for the arrest of criminals and held him on various criminal charges at various police stations, correctional facilities and at the courthouse located at 215 East 161st Street, County of Bronx, City and State of New York.

26. That, on or about July 13th, 2021, Plaintiff **THEODORE BARNES** was aware of his arrest and confinement, he did not consent to his arrest or confinement, and said confinement, seizure, arrest and detention was without legal justification.

27. That, at all times hereinafter mentioned, the actions of **CITY, NYPD, and VERAS**, their agents, servants and/or employees, as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

28. That by reason of the foregoing, Plaintiff **THEODORE BARNES** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF THEODORE BARNES**

29. Plaintiff **THEODORE BARNES** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 28 with the same force and effect as if fully set forth at length herein.

30. That, on or about July 13th, 2021, a criminal complaint was issued by the **CITY, NYPD, and VERAS**, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

31. That, on or about July 13th, 2021, a criminal action against Plaintiff **THEODORE BARNES** was commenced by **CITY, NYPD, and VERAS**, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

32. That **CITY, NYPD, and VERAS**, their agents, servants and/or employees, knowingly provided false information and information obtained through a reckless disregard for the truth to the District Attorney's Office knowing such information would be used to commence and continue a baseless and malicious prosecution against Plaintiff.

33. That solely as a result of the aforesaid, the Plaintiff **THEODORE BARNES'** life was interfered with.

34. That the criminal action against Plaintiff **THEODORE BARNES** was continued for an extended period of time because of defendants with malice and bad faith.

35. That solely, as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff **THEODORE BARNES**, he was deprived of his liberty for

an extended period of time and was subjected to scorn, ridicule, embarrassment and was degraded in the esteem of the community both personally and professionally.

36. That, on or about December 16th, 2021, the criminal action against Plaintiff **THEODORE BARNES** was terminated favorably by dismissal.

37. That the actions of **CITY, NYPD, and VERAS**, their agents, servants and/or employees, as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

38. That, by reason of the foregoing, Plaintiff **THEODORE BARNES** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A THIRD CAUSE OF ACTION ON
BEHALF OF PLAINTIFF THEODORE BARNES**

39. Plaintiff **THEODORE BARNES** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 38 with the same force and effect as if fully set forth at length herein.

40. That, on or about July 13th, 2021, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff **THEODORE BARNES** was intentionally touched, pushed, assaulted, battered, violated, strip searched, humiliated, photographed and handcuffed by **CITY, NYPD, and VERAS**, their agents, servants and/or employees, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

41. That, on or about July 13th, 2021, **CITY, NYPD, and VERAS**, their agents, servants and/or employees, did intentionally, willfully and maliciously assault and batter the Plaintiff **THEODORE BARNES** in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act

which threatened such contact to the Plaintiff **THEODORE BARNES** and their acts caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff and/or offensive bodily contact to the Plaintiff **THEODORE BARNES** and caused such battery in and about his head, neck, back, body and limbs.

42. That, by reason of the aforesaid intentional assault and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff **THEODORE BARNES** suffered great and permanent bodily injury in and about his head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that he was otherwise damaged.

43. That, as a result of the aforesaid assault and battery, the Plaintiff **THEODORE BARNES** was caused to sustain serious, severe, painful and permanent bodily injuries so that he was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure himself of his said injuries and he was and will be prevented from attending his usual occupation and duties.

44. That, at all times hereinafter mentioned, the actions of **CITY, NYPD, and VERAS**, their agents, servants and/or employees, as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

45. That, by reason of the foregoing, Plaintiff **THEODORE BARNES** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FOURTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF THEODORE BARNES**

46. Plaintiff **THEODORE BARNES** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 45 with the same force and effect as if fully set forth at length herein.

47. That the **CITY, NYPD**, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees, including but not limited to **CITY, NYPD**, and **VERAS**, their agents, servants and/or employees, as employees of **CITY** and **NYPD**, were not qualified to be hired or retained or promoted as police officers, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by **CITY** and **NYPD**.

48. That the **CITY** and **NYPD** failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that **CITY** and **NYPD** failed to adequately test, analyze test results, and/or investigate above mentioned police officers' backgrounds and performances.

49. That the **CITY** and **NYPD** failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that **CITY** and **NYPD** failed to adequately screen said police officers, failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violate Patrol Guidelines.

50. Defendant **CITY** and **NYPD** were also negligent in that, prior to and at the time of the acts complained of herein, due to the prior history of the police officer defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and

employed by the **CITY** and **NYPD** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

51. That, by reason of the above, the Plaintiff **THEODORE BARNES** was injured in mind and body as he was arrested, prosecuted and rendered sick, sore, and damaged.

52. That, at all times hereinafter mentioned, the actions of **CITY**, **NYPD** and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

53. That, by reason of the foregoing, Plaintiff **THEODORE BARNES** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FIFTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF THEODORE BARNES**

54. Plaintiff **THEODORE BARNES** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 53 with the same force and effect as if fully set forth at length herein.

55. In arresting Plaintiff **THEODORE BARNES**, police officers including but not limited to **CITY**, **NYPD**, and **VERAS**, their agents, servants and/or employees, acting in their capacity as agents, servants and employees of **CITY** and **NYPD**, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

56. In arresting Plaintiff **THEODORE BARNES**, police officers including but not limited to **CITY**, **NYPD**, and **VERAS**, their agents, servants and/or employees, acting in their capacity as agents, servants and employees of **CITY** and **NYPD**, sought either a detriment to Plaintiff **THEODORE BARNES** or a collateral advantage to the **CITY** and **NYPD** that is outside the legitimate ends of effectuating an arrest.

57. As a result of the abuse of process by defendants herein, Plaintiff **THEODORE BARNES** sustained multiple injuries including but not limited to loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

58. That, at all times hereinafter mentioned the actions of **CITY, NYPD, and VERAS**, their agents, servants and/or employees, were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

59. That, by reason of the foregoing, Plaintiff **THEODORE BARNES** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A SIXTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF THEODORE BARNES**

60. Plaintiff **THEODORE BARNES** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 59 with the same force and effect as if fully set forth at length herein.

61. At all times mentioned herein and above, defendants **CITY, NYPD, and VERAS**, their agents, servants and/or employees, were acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

62. Plaintiff **THEODORE BARNES** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

63. That, on or about July 13th, 2021, **CITY, NYPD, and VERAS**, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification and while effectuating the seizure of plaintiff **THEODORE BARNES**, did search his person and his

apartment and seize, assault and commit a battery upon the Plaintiff **THEODORE BARNES** without a court authorized arrest warrant or search warrant and defendants did physically seize Plaintiff **THEODORE BARNES** during the arrest process in an unlawful and excessive manner. Plaintiff **THEODORE BARNES** was falsely arrested, unlawfully imprisoned and strip searched and as a result of defendants' conduct maliciously prosecuted without the defendants possessing probable cause, reasonable cause or legal justification to do so.

64. The above actions of defendants **CITY, NYPD, and VERAS**, their agents, servants and/or employees, resulted in Plaintiff **THEODORE BARNES** being deprived of the following rights under the United States Constitution: a) Freedom from assault to his person pursuant to the Fourth and Fourteenth Amendments to the United States Constitution; b) Freedom from battery to his person pursuant to the Fourth and Fourteenth Amendments to the United States Constitution; c) Freedom from illegal search and seizure pursuant to the Fourth and Fourteenth Amendments to the United States Constitution ; d) Freedom from false arrest and imprisonment pursuant to the Fourth and Fourteenth Amendments to the United States Constitution e) Freedom from malicious prosecution pursuant to the Fourth and Fourteenth Amendments to the United States Constitution; f) Freedom from the use of excessive force during the arrest process pursuant to the Fourth and Fourteenth Amendments to the United States Constitution; g) The right to Due Process of Law pursuant to the Fourteenth Amendment to the United States Constitution; h) The right to a fair trial pursuant to the Sixth and Fourteenth Amendments to the United States Constitution.

65. In addition to the above, defendants **CITY** and **NYPD** have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct its police officers, including the officers

involved in this case and any and all unnamed officers involved in the unlawful seizure and arrest of plaintiff, regarding the protection of the constitutional rights of citizens.

66. Defendants **CITY, NYPD, and VERAS**, their agents, servants and/or employees, subjected Plaintiff **THEODORE BARNES** to such deprivation in a malicious, reckless, deliberate, intentional, grossly negligent and with a callous disregard of Plaintiff **THEODORE BARNES'S** rights and with deliberate indifference to those rights under the Fourth, Fifth, Sixth, Fourteenth and all other related Amendments to the United States Constitution.

67. The direct and proximate result of the **CITY, NYPD, and VERAS**, their agents, servants and/or employees, are that Plaintiff **THEODORE BARNES** suffered severe and permanent injuries, loss of liberty and companionship, forced to endure pain and suffering, emotional distress and severe and significant damage to standing and reputation in the community.

68. That, by reason of the foregoing, Plaintiff **THEODORE BARNES** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

WHEREFORE, the Plaintiff **THEODORE BARNES** demands judgment against the defendants on the First Cause of Action through the Sixth Causes of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, all together with attorney's fees, punitive damages and the costs and disbursements of this action.

Dated: Maspeth, New York

July 17, 2022


Raymond Elvis Gazer, Esq.
Law Offices of Raymond Elvis Gazer
64-04 Hull Avenue
Maspeth, New York 11378
(917)848-0527

TO: GEORGIA M. PESTANA, ESQ.
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POLICE OFFICER KARLA VERAS, Shield # 21537
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VERIFICATION

RAYMOND ELVIS GAZER, ESQ., attorney and counselor at law, duly admitted to practice before the courts of this state, deposes and says: that he is the attorney for the plaintiff in the above-entitled action; that he has read the foregoing Summons & Complaint, and that the same is true to his own knowledge, except as to those matters stated therein to be alleged on information and belief, and as to those matters, he believes them to be true.

This verification is made by deponent instead of the said plaintiff because the plaintiff resides outside the County of Queens where deponent maintains his offices.

Raymond Elvis Gazer
Raymond Elvis Gazer, Esq.

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Plaintiff,

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SUMMONS & VERIFIED COMPLAINT

RAYMOND E. GAZER, ESQ.

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64-04 Hull Avenue

Maspeth, New York 11378
